

Suresh Chandra Gupta v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 16 July 2021 · Writ-C No. 15995 of 2021 · **Writ disposed; Clause 6.15 correction and Clause 6.14 instalments relegated to the licensee after Clause 6.5(b)(ii) pre-deposit; coercive action stayed eight weeks.**

HEADNOTE

A consumer's prayer to correct a demand notice is treated as referable to Clause 6.15 of the Uttar Pradesh Electricity Supply Code, 2005. The High Court will not decide the objection on merits: if the consumer complies with the Clause 6.5(b)(ii) pre-deposit, the licensee is to pass orders on correction and, thereafter, consider instalment payment under Clause 6.14. The licensee must communicate the exact pre-deposit, adjusting sums already paid. Coercive recovery is stayed for eight weeks or until the objection is disposed of.

FACTUAL SUMMARY

Suresh Chandra Gupta challenged a 4 September 2020 notice issued by the distribution licensee (respondent no. 2) demanding Rs 9,85,156 as electricity charges. He had already filed an objection dated 25 February 2021 seeking correction of the bill and permission to pay through instalments. The Division Bench heard counsel for the petitioner, the State, and the licensee, and disposed of the writ without adjudicating those objections on the merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.15

bill correction relegated after 6.5(b)(ii) pre-deposit; instalments then under 6.14

HOLDING

A prayer to correct an electricity demand is referable to Clause 6.15. If the consumer complies with Clause 6.5(b)(ii) within three weeks and makes the necessary deposit, the licensee shall pass appropriate orders on correction; once that prayer is dealt with, it shall consider payment through instalments under Clause 6.14. The licensee must communicate the exact Clause 6.5(b)(ii) pre-deposit within one week, to be deposited within two weeks thereafter, with adjustment of amounts already paid. No coercive measure shall be adopted for eight weeks or till disposal of the objection. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 After the Clause 6.15 correction prayer is dealt with, the licensee is directed to consider the consumer's second prayer for payment of dues through instalments in terms of Clause 6.14. ¶ 1

UP-2005::6.5(b) Consideration of the Clause 6.15 bill-correction objection is conditioned on first complying with the pre-deposit under Clause 6.5(b)(ii); the licensee must communicate the exact amount, grant adjustment of sums already paid, and then proceed to decide correction. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DEMAND OF RS 9,85,156 REQUIRED CORRECTION ON THE MERITS UNDER CLAUSE 6.15

Relegated to the licensee after Clause 6.5(b)(ii) pre-deposit. ¶ 1

NOT DECIDED — WHETHER THE CONSUMER WAS ENTITLED TO PAY THE DUES IN INSTALMENTS UNDER CLAUSE 6.14

To be considered only after the correction prayer is dealt with. ¶ 1

